

**IN THE SUPREME COURT OF
THE STATE OF WASHINGTON**

ZACKARIAH BENNETT,

Petitioner,

v.

MELVINA MANNING,

Respondent.

Case No.: 102950-1

Court of Appeals No.: 84450-4-I

MOTION FOR RECONSIDERATION

I. INTRODUCTION

Petitioner, Zackariah Jeremiah Bennett, respectfully submits this Motion for Reconsideration of the Court's decision dated September 4, 2024, denying review. The Petitioner contends that the Court's decision overlooked significant material facts and legal errors, including:

1. Improper retroactive application of law.
2. Failure to address key statutory elements.
3. Procedural irregularities and misrepresentations resulting in a violation of due process.

II. LEGAL STANDARD FOR RECONSIDERATION

BENNETT'S MOTION FOR RECONSIDERATION

Case No.: 102950-1

Court of Appeals No.: 84450-4-I

Under Washington Rules of Appellate Procedure (RAP 12.4), reconsideration may be granted if the Court overlooked or misapprehended points of law or fact, or if necessary to correct a clear error or prevent manifest injustice.

Authority: State v. Ellis, 178 Wn.2d 693, 310 P.3d 121 (2013) – Courts have broad discretion to reconsider rulings to ensure justice is served.

III. GROUNDS FOR RECONSIDERATION

A. Retroactive Application of Law Violates Ex Post Facto Principles

Argument:

The trial court erroneously applied the post-July 1, 2022 definitions to an incident occurring on June 16, 2022, leading to an ex post facto violation.

Legal Authority:

State v. Beaver, 184 Wn.2d 321, 358 P.3d 385 (2015) – Statutes must not be applied retroactively unless explicitly stated by the legislature.

Landgraf v. USI Film Prods., 511 U.S. 244, 268 (1994) – The U.S. Supreme Court ruling on retroactive application violating ex post facto principles.

B. Failure to Prove the Required Element of "Course of Conduct"

Argument:

The trial court acknowledged the absence of the required "knowing and willful course of conduct" (RCW 10.14.020), which is essential for granting a Domestic Violence Protection Order (DVPO).

Legal Authority:

Wessa v. Watermark Paddlesports, Inc., No. C06-5156, W.D. Wash. (2006) – Failure to establish statutory elements justifies reversing a lower court's decision.

C. Mootness and the DVPO Extension Filing**Argument:**

Despite the expiration of the DVPO, the plaintiff filed for a one-year extension, which was noted but disregarded, leading to the unjust dismissal of the case as moot.

Details:

Plaintiff filed for the DVPO extension on May 2, 2023. The DVPO expired on August 5, 2023. The Appellant's brief was filed on October 2, 2023. Plaintiff's new counsel filed a Notice of Appearance on November 3, 2023, and subsequently moved for dismissal, claiming mootness in the reply brief via counsel.

Legal Authority:

In re Marriage of Leslie, 112 Wn.2d 612, 772 P.2d 1013 (1989) – Mootness should not apply where there is an ongoing controversy or potential impact.

United States v. Munsingwear, Inc., 340 U.S. 36 (1950) – If a case becomes moot pending appeal, courts should vacate the lower court judgment to prevent unfair legal consequences.

D. Retention of Counsel to Avoid Review**Argument:**

The strategic retention of counsel post-deadline was aimed at blocking a review, thus obstructing fair judicial scrutiny.

Details:

The DVPO expired on August 5, 2023.

The Appellant's brief was filed on October 2, 2023.

Notice of Appearance by plaintiff's new counsel was filed on November 3, 2023.

Plaintiff, in the reply brief via counsel, then moved for dismissal, claiming mootness.

Effect:

This action prejudiced the Petitioner's ability to receive fair judicial scrutiny, and the Court's decision should be revisited.

IV. NEWLY DISCOVERED EVIDENCE AND MISREPRESENTATIONS

Argument:

During discovery, a portion of the security video that the plaintiff had withheld was obtained. This was a 93-second cell phone recording from a much longer video, with the remainder being allowed to auto-delete after the Petitioner requested the video. The withheld video directly pertains to the incident claimed to be domestic violence, and yet was misrepresented by opposing counsel as "not relevant to this case" in their Respondent's Answer on June 21, 2024. This constitutes evidence spoliation and a clear misrepresentation that materially affected the outcome of the proceedings.

Legal Authority:

CR 60(b)(3) – Relief from judgment is warranted due to misrepresentation and new evidence.

In re Marriage of Leslie, 112 Wn.2d 612, 772 P.2d 1013 (1989) – New evidence that could not have been discovered with due diligence justifies reconsideration.

V. CONCLUSION

For the reasons set forth, the Petitioner respectfully requests that this Court:

1. Reconsider its decision denying the petition for review.
2. Reverse the lower court's judgment based on the ex post facto application of law and the failure to prove statutory elements.
3. Address the procedural unfairness regarding the mootness dismissal and consider newly discovered evidence and misrepresentations for further review.

DATED: 14th day of September, 2024.

Respectfully submitted,

Zackariah Bennett

A handwritten signature in black ink, appearing to read 'Zackariah Bennett', with a stylized, flowing script.

Zackariah Jeremiah Bennett

Pro Se Petitioner

757 words